

DECISION

This Institution received following three complaints from the respective complainants stating therein that they had been appointed on Deceased Quota by the Education & Literacy Department, Tando Muhammad Khan (T.M. Khan) and they had joined their duties but the District Accounts Office, Tando Muhammad Khan had not opened their salary IDs despite submission of FO II forms alongwith all acquired document by the District Education Officer (E/S & HS), T.M. Khan.

S. No	Name of employees & designation	Complaint No & Dates of Receipt	Date of Issuance of Offer Letter	Date of Joining
1.	Mr. Mujeebur Rehman Jr. Clerck (BPS-11)	POS/RBH/99/2025 11.03.2025	25.09.2024	01.10.2024
2.	Mr. Muhammad Yaqoob, Naib Qasid (PBS-1)	POS/RBH/100/2025 11.03.2025	08.10.2024	15.10.2024
3.	Mr. Irfan Ali, Jr. Clerk (BPS-11)	POS/RBH/115/2025 08.04.2025	19.09.2024	26.09.2024

2. The complainants approached the DAO, T.M. Khan for payment of their salaries but to no avail. Hence they sought our intervention for relief.

PROCEEDINGS

3. The complaints were admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date).

All the three complainants were taken up with the DAO, T.M. Khan on various dates followed by reminders for report. Later on the matter was discussed with DAO on 18.06.2025 and he stated that legal opinion of the Law Department was required in view of the judgement/ order of the Hon'ble Supreme Court of Pakistan dated 18.10.2024 in the Civil Petition # 3390 of 2021 pertaining to deceased quota in Government services.

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Accordingly, the matter was referred to the Secretary, Law Department for opinion vide letter dated 07.07.2025. In response the Section Officer (Opinion), Law Department furnished the opinion vide his letter dated 16.07.2025 which is reproduced as under ;

“Since the appointment orders under question were issued prior to the date of announcement of the restricting orders of the Apex Court on 18.10.2024, that should be taken as valid and lawful appointment as per this departments circular No.DQ:1(12)/2024/220 dated 26.12.2024 and the corrigendum dated 02.05.2025 brought out in the light of the Advocate General Sindh Advice bearing B No.AG/1660/2025 dated 29.03.2025 (copies enclosed)”

A copy of the above letter was sent to the DAO, T.M. Khan vide letter dated 23.07.2025 for taking appropriate action in the light of opinion of the Law Department. Finally, the DAO informed vide his letter dated 09.09.2025 that the issue stood resolved and enclosed the pay slips of the complaints as evidence.

4. The above information was shared with the complainants by the Investigating Officer on telephone and they confirmed that their grievance had been resolved. They also expressed their gratitude to this Institution and requested to close their complaints.

DECISION

5. In view of the above and in exercise of powers vested in me u/s 11 of Establishment of the Office of the Ombudsman for Province of Sindh Act, 1991 (amended upto date), these complaints are hereby disposed of as redressed.

Given under my hand and seal of Office.



Sd/-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz - PAS
Ombudsman, Sindh

Karachi, dated 30th October, 2025